

Message 1 of 52

Important Information: T&E and AP

Sender	georganne.hodges@enron.com
Recipients	['per.dyrvik@ubsw.com', 'houston.dl-ubsw@enron.com', 'brad.williams@ubsw.com', 'patrick.canavan@ubsw.com', 'po...]
File	mckay-j/ubswenergy_com/13.

Employee Expense Reports (T&E)

UBS uses an on-line system, Concur, to process Travel & Entertainment (T&E) expenses. We would like to provide you with some guidelines in getting an employee expense report processed. Until everyone gets access to the website, a limited number of UBS terminals will be made available to employees. Designated business area assistants are being trained on the UBS "eTravelExpense" system. The following steps should be used to submit a T&E expense report:

? Locate a UBS terminal (separate notification will be distributed when locations are known) ? Logon to system (ID's distributed at a later date) ? Complete T&E form on line ? Print out the 'Receipt Report' and obtain the appropriate signatures on the report ? Attach original receipts required as defined on the 'Receipt Report' ? Drop off in bin located at 05199

The UBSW Energy LLC management has determined the approval requirements for all T&E expenses to be at an Executive Director level and above. The approval structure is as follows:

\$10,000 and below Executive Director \$10,001 and greater Managing Director

At this time, we are requesting employees submit expense reports no more than twice a month. All T&E (checks or direct deposits) will be processed from the Weehawken, NJ office but paid out of the Stamford, CT office. Until the website becomes available, Portland employees will need to use the attached manual T&E expense form in excel. The completed form and original receipts should be mailed to the Houston location for further processing:

UBS Warburg Energy LLC Attention Accounts Payable PO Box 4764 Houston, Texas 77210-4764

A global T&E policy is located on the UBS intranet site and will be distributed to the assistants.

Third Party Vendor Invoices (Accounts Payable)

When submitting an invoice to Accounts Payable for payment to a third party vendor, the following information MUST be included:

Required Information ? The name and address of the vendor should be clearly identifiable on the invoice. ? The invoice must clearly display the total amount to be paid including sales tax (if applicable). ? A coding sheet or wire request form must be completed and attached to the front of the original invoice (see attached forms). ? Obtain authorized UBSW Energy LLC signatures and date of approval on invoice (do not use coding sheet).

Procedures ? Only original invoices should be delivered to ECS 05199 (Accounts Payable) ? Clock in the invoice and drop off in the bin marked 'Invoices'

The invoices will be processed and paid out of the Stamford, CT office every Monday, Wednesday and Friday with the exception of the last three days of the month. Vendors will be paid thirty days from invoice date unless otherwise specified. Since all checks are to be processed and mailed out of the Stamford office, same day checks will not be available, so please plan accordingly. The UBSW Energy LLC management has determined the approval requirements for all third party vendor invoices to be at an Executive Director level and above. The approval structure is as follows:

\$ 50,000 and below Executive Director \$ 50,001 to \$250,000 Managing Director \$250,001 and greater Two Managing Directors

The Accounts Payable department will route all invoices for final approval to Wes Colwell or Georganne Hodges. The Portland office will follow the same guidelines and send to the Houston location listed above for further processing.

Contacts

Any questions regarding coding or payment status should be directed to the following individuals:

Toni Bustamante (ECS 05198) telephone (713) 345-7044

Stacey Aune (ECS 05197) telephone (713) 853-3151

Message 2 of 52

FW: CGT - Capacity Auctions

Sender	clarissa.garcia@enron.com
Recipients	['jonathan.mckay@enron.com', 'scott.neal@enron.com', 'judy.townsend@enron.com']
File	mckay-j/pipeinfo/9.

fyi -----Original Message----- From: navigator@nisource.com [mailto:navigator@nisource.com] Sent: Tuesday, February 26, 2002 8:54 AM To: navigator@nisource.com Subject: CGT - Capacity Auctions

COLUMBIA GULF TRANSMISSION COMPANY NOTICE TO ALL INTERESTED PARTIES FEBRUARY 26, 2002

Notice ID: 3518 5 - NO RESPONSE REQUIRED

Columbia Gulf Transmission is auctioning the following firm capacity available March 1, 2002:

Mainline capacity at 30,000 dth/d from Rayne, Louisiana to Leach, Kentucky at CGT's maximum FTS-1 transportation rate.

Onshore capacity at 47,395 dth/d from Venice to Rayne, Louisiana at CGT's maximum onshore FTS-2 transportation rate.

Offshore capacity at 20,000 dth/d from South Pass to Egan, Louisiana at CGT's maximum offshore FTS-2 transportation rate.

Bids must be received by 2:00 p.m. (Central Time) February 26, 2002.

Details of these capacity auctions may be found in the Columbia NAVIGATOR system, under the capacity release folder, offer numbers 35223, 35209, and 35218 respectively.

For additional information please contact, Janice Felton at (713) 267-4210, Steve Wendel at (713) 267-4769, or Brian Lamb at (713) 267-4251.

Message 3 of 52

An Inbound Message For You Has Been Quarantined

Sender	enron.mailsweeper.admin@enron.com
Recipients	['jmckay2@notes.enron.com']
File	mckay-j/deleted_items/207.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: boxerindy@yahoo.com Date: Fri, 21 Dec 2001 06:06:01 -0800 (PST) Subject: Happy Holidays From Ed Bullinger & Lori Saitz Attachment Type: Scenarios/Incoming/Inbound EXE Catcher: A filename matching the file mask was detected: 'christmascard5.exe'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be

scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 4 of 52

FW: Assistance for Former Employees

Sender	jonathan.mckay@enron.com
Recipients	['bjenkins2@houston.rr.com']
File	mckay-j/sent_items/13.

-----Original Message-----

From: Enron General Announcements Sent: Thursday, January 31, 2002 4:14 PM To: DL-GA-all_domestic; DL-GA-all_NETCO Subject: Assistance for Former Employees

Many of you have friends who are no longer with the company, so we wanted to provide you an overview of continuing efforts to assist Enron's former employees.

CAREER SERVICES Last December Enron established a website to assist former employees identify jobs in Houston and throughout the United States. Only former Enron employees and potential employers can access the site, <http://careerservices.enron.com/>

On this site, former employees can: ? Post their resumes for approved employers to view ? View job postings ? Receive updates and information on career and community services available to them As of January 25, 2002: ? More than 1,300 companies had been approved to view resumes ? Company recruiters had logged on more than 3,500 times to search for candidates ? More than 600 jobs had been posted on the site

FINANCIAL ASSISTANCE The Greater Houston Community Foundation The Greater Houston Community Foundation (GHCF), in collaboration with the United Way of the Texas Gulf Coast, the Houston Area Urban League, Crisis Intervention of Houston, and Career and Recovery Resources, have established a fund to provide dedicated support for former Enron employees. GHCF offers former employees counseling services and helps them work with mortgage companies, landlords and utilities to defer monthly bills while they are out of work. If you are interested in making a tax-deductible donation to the GHCF, please call 713-268-6458 or mail donations to GHCF at 4550 Post Oak Place, Suite 317, Houston, TX 77027. Checks should be made payable to Greater Houston Community Foundation and designated for the Enron Employee Transition Fund. To receive assistance, former employees can call 713-533-4598, or outside Houston, 1-800-493-4598. Lines are open 24 hours a day, seven days a week.

Enron Ex-Employee Relief Fund Account A former employee has established the Enron Ex-Employee Relief Fund Account at the Humble Community Bank. Visit the website at <<http://www.eerfa.com>> for more information or to make a donation. Former employees can submit grant requests to eerfarequest@surfmk.com.

MDPC Transitional Assistance Program Memorial Drive Presbyterian Church has created a Transitional Assistance Program open to both members and non-members who need assistance re-entering the workforce. Right Management Consultants offers a series of two-day workshops for former employees on topics such as Career Assessment and Evaluation, Job Search Communication and Managing in a Time of Change. Requests for limited and discretionary short-term financial assistance will be accepted from those who have participated in this program. MDPC will offer a holistic approach to re-entering the workforce including family counseling and stress management. For more information, contact Memorial Drive Presbyterian Church at 713-953-2550, ext 180.

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RE: CFA Paperwork

Sender	jonathan.mckay@enron.com
Recipients	['stephen.brown@rbcdain.com', 'brown@enron.com']
File	mckay-j/sent_items/288.

Thank you very much, and please thank Mr.Fox for me. I really appreciate your help with this.

Best Regards,

Jon

PS. Thanks for the Tickets... it looks like it should be fun!

-----Original Message-----

From: Brown, Stephen [mailto:Stephen.Brown@Rbcdain.com] Sent: Thursday, February 14, 2002 2:05 PM To: jonathan.mckay@ubsenergy.com Subject: CFA Paperwork

Les Fox is a CFA in our office. He signed your paperwork and I attached his card to it. I am mailing it to your home address, you should have it by Sat.

Stephen P. Brown Financial Consultant RBC Dain Rauscher 2000 West Sam Houston Parkway South, Suite #1500 Houston, TX 77042 Phone: 713-623-9258 Fax: 713-623-9283 888-246-6675

Message 6 of 52

RE: Thurs Meeting

Sender	jonathan.mckay@enron.com
Recipients	['stephen.brown@rbcdain.com']
File	mckay-j/sent_items/265.

Sorry Stephen,

Thing around here have been a little hectic. Friday would be fine, just let me know where.

Jon

-----Original Message-----

From: "Brown, Stephen" <Stephen.Brown@Rbcdain.com>@ENRON Sent: Wednesday, November 28, 2001 2:51 PM To: Mckay, Jonathan Subject: Thurs Meeting

My friends at Duke can not meet Thursday night, but can on Friday. Can you get together on Friday? If so, it will be early (around 5 PM) so your honey won't get upset. If Friday will not work, you and I can still meet on Thursday. Let me know. Cabo again is fine with me.

Stephen P. Brown Financial Consultant RBC Dain Rauscher 2000 West Sam Houston Parkway South, Suite #1500 Houston, TX 77042 Phone: 713-623-9258 Fax: 713-623-9283 888-246-6675

Message 7 of 52

RE: Funds From Canada

Sender	jonathan.mckay@enron.com
Recipients	['stephen.brown@rbcdain.com']
File	mckay-j/sent_items/12.

Hey Stephen,

Glad to hear the funds finally showed up. It would be helpful to me if we could hook back up together in the next little while. I'd like to get your opinion on a few different thoughts that I've had. I need to do some "financial planning" so to speak.

Let me know how your schedule is looking

Thanks,

Jon

-----Original Message-----

From: "Brown, Stephen" <Stephen.Brown@Rbcdain.com>@ENRON Sent: Tuesday, February 05, 2002 9:13 AM To: Mckay, Jonathan Subject: Funds From Canada

Your remaining funds from Canada have arrived into your account. Give me a call when you can.

Stephen P. Brown Financial Consultant RBC Dain Rauscher 2000 West Sam Houston Parkway South, Suite #1500
Houston, TX 77042 Phone: 713-623-9258 Fax: 713-623-9283 888-246-6675

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RE: How was the draft?

Sender	jonathan.mckay@enron.com
Recipients	['stephen.brown@rbcdain.com', 'brown@enron.com']
File	mckay-j/sent_items/293.

It was good.... I went down around noon and hung out for a couple of hours. It is amazing how excited everyone is for the Texan's to start up. Thank you very much for the tickets it was a lot of fun. It seemed like everyone but me knew who they were going to take in the draft. Look for a check the next couple of days I plan on sending you \$25,000 that I would like you to put with the rest of my cash for now.

Thanks Again,

Jon

-----Original Message-----

From: Brown, Stephen [mailto:Stephen.Brown@Rbcdain.com] Sent: Wednesday, February 20, 2002 1:44 PM To: jonathan.mckay@ubsenergy.com Subject: How was the draft?

Stephen P. Brown Financial Consultant RBC Dain Rauscher 2000 West Sam Houston Parkway South, Suite #1500
Houston, TX 77042 Phone: 713-623-9258 Fax: 713-623-9283 888-246-6675

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RE:	
Sender	jonathan.mckay@enron.com
Recipients	['dale.onrait@rbcinvestments.com']
File	mckay-j/sent_items/258.

Dale,

Thank you very much for hooking me up with Stephen. It seems that he will probably be able to help me move some of my stuff directly to the US. Could you please see that the address on my current accounts with RBC gets changed to my Houston location so I can receive statements going forward. The correct address is:

Jonathan McKay 909 Texas Avenue, #1808 Houston, Texas, 77002

Thank you very much.

Regards,

Jon

-----Original Message-----

From: "Onrait, Dale" <dale.onrait@rbcinvestments.com>@ENRON Sent: Monday, October 22, 2001 10:00 AM To: Mckay, Jonathan Subject:

Hi Jonathan, I have gotten a contact for you with our associate firm in Houston. The fellow's name is Stephen Brown phone (713) 623-9258 at Dain Rauscher. He will be expecting your call. Let me know how you make out after you contact him. Dale Onrait, BSP MBA RBC Investments-Kelowna 1-800-756-2211 or (250) 712-2191

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Cost Basis	
Sender	stephen.brown@rbcdain.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/inbox/19.

We are trying to establish your cost basis in your account. Do you have confirms from the purchase date on your securities so we can see when the securities were purchased? We need to know the date because of the currency conversion. Dale Onrait in Canada said you purchased the securities from another branch so he does not have the records. This is for your benefit in determining your position if you sell the securities.

Also, please contact Dale to sell your Canadian securities and have them convert the proceeds to US\$. Tell them to send the money to us for your account in Houston.

We still have not received your check. Did you send it?

Let me know if you would like to grab a drink over the next 2 weeks. Everything is slowing down for the holidays and my shopping to done!

Stephen P. Brown Financial Consultant RBC Dain Rauscher 2000 West Sam Houston Parkway South, Suite #1500 Houston, TX 77042 Phone: 713-623-9258 Fax: 713-623-9283 888-246-6675

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RE:	
Sender	jonathan.mckay@enron.com
Recipients	['rodf@telusplanet.net']
File	mckay-j/sent_items/180.

Hi Rod,

I'm sorry I have not been reachable but I was waiting until I had all the info you needed before I contacted you. The new info is as follows:

#1808, 909 Texas Ave. Houston, Texas, 77002

jonathan.mckay@enron.com

(h) 713 225-1230 (w) 713 853-4810 (f) 713 646-8453

Do you know what happens next? Do I need a lawyer? Do any other provisions remain? Any idea how I get paid? Any help would be appreciated!

Best Regards,

Jon

As for golf course, I was thinking I'd meet you at Pebble Beach.....Just kidding.

-----Original Message-----

From: "Rod Forsythe" <rodf@telusplanet.net>@ENRON

[mailto:IMCEANOTES+22Rod+20Forsythe+22+20+3Crodf+40telusplanet+2Enet+3E+40ENRON@ENRON.com] Sent: Wednesday, August 29, 2001 1:18 PM To: Mckay, Jonathan Subject:

Hello John,

Your home looks great with a sold sign on it. Yes it is sold. The only thing I need now is your new address, phone # and any new e-mail addresses you might have.

Good luck John I owe you a round of golf at a course of your choosing, say hi to the gang and I will be in touch.

Have a great day,

Rod Forsythe

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Undeliverable: RE: Relocation Info/851367	
Sender	exchange.administrator@enron.com
Recipients	['jonathon.mckay@enron.com']
File	mckay-j/personal/94.

----- Inline attachment follows -----

From: </O=ENRON/OU=NA/CN=RECIPIENTS/CN=JMCKAY1> To: "'Mursch, Camilla"

<Camilla_Mursch@AFCC.com>@ENRON' <IMCEANOTES+22Mursch+2C+20Camilla+22+20+3CCamilla+5FMursch+40AFCC+2Ecom+3E+40ENRON@ENRON.com>, 'jonathon.mckay@enron.com' CC: 'Dickens, Billie' <Billie_Dickens@AFCC.com>, 'Jennings, Severine' <Severine_Jennings@AFCC.com> Date: Monday, July 16, 2001 10:30:08 GMT Subject:

Billie,

Here is my account number for the wire: Swift Code (ABA Code) TDOMCATT - 80609 004 0805 7116266

Please let me know if there is anything else you need.

Regards,

Jon

-----Original Message-----

From: "Mursch, Camilla" <Camilla_Mursch@AFCC.com>@ENRON [mailto:IMCEANOTES-+22Mursch+2C+20Camilla+22+20+3CCamilla+5FMursch+40AFCC+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, July 12, 2001 4:00 PM To: 'jonathon.mckay@enron.com' Cc: Dickens, Billie; Jennings, Severine Subject: Relocation Info/851367

John:

I did some investigating on the Canadian homesale piece and found out some interesting facts. First one and the most important one is that I will not be handling that piece of the relocation. Instead a young woman by the name of Severine Jennings will be handling that our of our International Department and her number is 800/241-6529 ext. 75910. She specializes in Canadian properties and will be the better person to assist you. Secondly, there is a real need for you to use Royal LePage as the agency to list your home and the reason is that they know everything there is to know about the favorable tax treatment on sale of your home. They know how to handle the sale in the "U.S. way" and they follow all the strict guidelines of relocation. Severine will contact you to go over all this with you tomorrow.

I will still be your contact for all othe aspects of your relocation. Remember, Billie will call you tomorrow to get you wiring information for your lump sum calculations.

Talk to you on Monday - have a great weekend.

Cami Mursch, CRP Mobility Consultant CitiCapital Relocation Enron Relo Team 800/241-6529 ext 75262 972/657-5262 - direct dial 972-657-6077 - fax camilla_mursch@afcc.com

Message 13 of 52

RE: Pricing for sale of 51 GJ's

Sender	jonathan.mckay@enron.com
Recipients	['lisa.mcisaac@enron.com', 'ryan.watt@enron.com', 'randel.dalgleish@enron.com', 'kate.joslyn@enron.com']
File	mckay-j/sent_items/174.

I believe that the trade should have been book at zero premium. Please make the appropriate changes.

Regards,

Jon

-----Original Message-----

From: Dalgleish, Randel Sent: Monday, June 11, 2001 10:35 AM To: Mckay, Jonathan Cc: Joslyn, Kate Subject: Pricing for sale of 51 GJ's

John, my understanding of our deal with you to sell 51 GJ's of gas to you each day until the end of June was at the AECO daily price with no discount. The Schedule A for Sitara 838545 shows a discount of \$0.06835 per GJ. If this should be 0 can you let me and Lisa McIsaac know so the contract can be changed, if not can you contact Kate or myself when you have a break in trading or after trading has closed for the day.

Thanks

Randel Dalgleish (403) 663-2807 (403) 663-2899 Fax

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CFA Sponsorship

Sender	jonathan.mckay@enron.com
Recipients	['michaelm@jenswold.com']
File	mckay-j/personal/10.

Dear Sir,

My name is Jonathan McKay and I am contacting you with regards to The Houston Society of Financial Analysts. I have just recently move to Houston from Calgary, Canada and now find myself in need of sponsorship. Just this past year I also completed the third exam and sponsorship will allow me to become a charter holder. I obtained your name from a list of people that may be willing to sponsor new members and would greatly appreciate any help you could offer.

In order for you to become comfortable sponsoring me I have attached my resume and would also be willing to meet with you in person if that is preferable. Also, attached is a copy of the sponsors document that contains a section that needs to be completed by my sponsor. If you would be willing to sponsor me I would be very grateful, and if you are unable to sponsor me at this time any help you could offer as far as contacting other local members would be equally appreciated.

Thank you for your help.

Jon McKay

909 Texas Avenue #1808 Houston, Texas, 77002 W(713) 853-4810 H(713) 225-1230 jonathan.mckay@enron.com

Message 15 of 52

RE: Tradespark

Sender	jonathan.mckay@enron.com
Recipients	['mkammer@tradespark.com']
File	mckay-j/sent_items/245.

Thank You!

-----Original Message-----

From: "Kammer, Mike" <MKammer@tradespark.com>@ENRON Sent: Friday, October 12, 2001 8:17 AM To: Mckay, Jonathan Subject: Tradespark

Mike Kammer - Director of Natural Gas Basis 550 Westcott suite 235 Houston ,TX 77007 713-655-5005 Fax - 713-655-5041

mkammer@tradespark.com IM - kammerspark

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For further important information, please see <http://www.tradespark.com/full-disclaimer.html>

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A Unique Holiday Gift for Corporate Clients and Friends

Sender	meyers@wt.net
Recipients	['fletcher.deborah@enron.com', 'lawrence.john@enron.com']
File	mckay-j/deleted_items/228.

From: K&M Hair Designs 910 Travis, T-200 Houston, TX 77002 Tel: 713-650-1551 Are you wondering what to give your key corporate clients and business associates this holiday season? Are you concerned that your gifts may be hung up in security conscious mailrooms? Would you like to give something other than the usual gourmet food packages ? something that will be remembered long after the holidays? This holiday season treat your associates with a K & M Salon gift certificate for wonderfully relaxing massage therapy sessions. Our highly skilled massage therapists will pamper your associates through this truly memorable and unique gift program. K& M Salon has several gift certificate packages at very affordable levels. Consumers spend over \$ 5 billion annually on visits to massage therapists? usually at hotels and spas, on vacation or during business meetings. Your K&M gift will let your associates indulge themselves at our convenient down town Houston location any time of day.

The Holiday Stress Reliever package The Unique Lifestyle Experience package The I'm Ready For Anything package

This holiday season let your gift stand out from all the rest. One phone call to Patti at 713-650-1551 can conveniently meet your corporate gift needs. We are contacting you as a client of K&M Hair Designs hair salon. If you received this message in error, we sincerely apologize. Simply respond to this email with "No Offers" in the subject line and you will not be contacted again.

Message 17 of 52

Geico Rate Quote 011115.165518.35909

Sender	geicoonlinequotes@geico.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/deleted_items/234.

Dear Jonathan McKay: Here is a copy of your GEICO General rate quote to hang on to. Total Premium: \$624.10 for a 6 month policy Click here to see the details of the coverages and premium. Click here to BUY this policy ONLINE. It is easy to start your policy right at our web site. To activate your policy by phone, call 1-800-861-8380, 24 hours a day. Please reference this number when you call: 71322512300000. If you have questions about your quote, please e-mail us at ratequotes@geico.com . Are you ready to switch to GEICO? Be one of the more than 10,000 drivers just like you who will switch to GEICO this week. The GEICO Direct Difference Every minute of every day, drivers all across the country switch to GEICO Car insurance. Why? GEICO increases efficiency - and the level of service - by cutting out the middleman. Eliminating unnecessary layers and expenses means you deal directly with the source. GEICO's convenient Payment Plans - you can choose to pay your premium in full, or select one of our payment plans to make our bill, if not the highlight of your day, at least more convenient than others you may receive. And now, you can even receive your bill electronically via email. GEICO's web site, www.geico.com, provides you with a convenient way to access your account, pay your bill online, change your policy, and learn about our services. GEICO provides fast, efficient nationwide claim handling. GEICO offers renewal to more than 98% of it policyholders each year. GEICO has numerous money-saving discounts available.

Government Employees Insurance Company GEICO General Insurance Company GEICO Indemnity Company GEICO Casualty Company One GEICO Plaza Washington, DC 20076 www.geico.com

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FW: Relocation Info/851367

Sender	jonathan.mckay@enron.com
Recipients	['rodfremax@aol.com']
File	mckay-j/sent_items/142.

Hi Rod,

I am forwarding this e-mail just to let you know what I am being told as far as selecting a realtor (see below). Today I am going to talk to the relocation people and do what I can about keeping things going with you. The relocation people don't sound like they know what is going on, as demonstrated by their reference to "favorable tax treatment", but if they insist on having Royal LePage I wanted to see if you could speak to them directly. My preference is to have you represent me, but if they are "paying the bills" I may have little choice.

Best Regards,

Jon -----Original Message----- From: "Mursch, Camilla" <Camilla_Mursch@AFCC.com>@ENRON [mailto:IMCEANOTES-+22Mursch+2C+20Camilla+22+20+3CCamilla+5FMursch+40AFCC+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, July 12, 2001 4:00 PM To: 'jonathon.mckay@enron.com' Cc: Dickens, Billie; Jennings, Severine Subject: Relocation Info/851367

John:

I did some investigating on the Canadian homesale piece and found out some interesting facts. First one and the most important one is that I will not be handling that piece of the relocation. Instead a young woman by the name of Severine Jennings will be handling that our of our International Department and her number is 800/241-6529 ext. 75910. She specializes in Canadian properties and will be the better person to assist you. Secondly, there is a real need for you to use Royal LePage as the agency to list your home and the reason is that they know everything there is to know about the favorable tax treatment on sale of your home. They know how to handle the sale in the "U.S. way" and they follow all the strict guidelines of relocation. Severine will contact you to go over all this with you tomorrow.

I will still be your contact for all othe aspects of your relocation. Remember, Billie will call you tomorrow to get you wiring information for your lump sum calculations.

Talk to you on Monday - have a great weekend.

Cami Mursch, CRP Mobility Consultant CitiCapital Relocation Enron Relo Team 800/241-6529 ext 75262 972/657-5262 - direct dial 972-657-6077 - fax camilla_mursch@afcc.com

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Jonathan McKay - L1 Visa Application

Sender	margaret.daffin@enron.com
Recipients	['jonathan.mckay@enron.com', 'jeanie.slone@enron.com', 'john.lavorato@enron.com']
File	mckay-j/personal/85.

Jon: I have been asked to contact you regarding your job offer with Enron North America in Houston.

In order that I may proceed with an L1A (intracompany) visa on your behalf, please complete the attached L1 questionnaire and return this to me at your earliest convenience, along with copies of the following documents:

a copy of your passport, including any previous US visas a copy of your degree (I have a copy of the transcript) if you have family members accompanying you to the US, copies of their passports

Please send to me via Fedex to:

Enron Corp. 1400 Smith Street, EB3658A Houston, TX 77002

Please call me with any questions you may have at 713-345-1529.

Margaret

Message 20 of 52

FW: Declaration of Force Majeure - WEI McMahon gas plant

Sender	jonathan.mckay@enron.com
Recipients	['chris.lambie@enron.com', 'john.zufferli@enron.com', 'stephane.brodeur@enron.com', 'chad.clark@enron.com']
File	mckay-j/sent_items/150.

Please note that because this event of force majeure is at the plant, and not on the pipe, it does not qualify as an event of force majeure under our contract. Any deals we have that are not done under a Enron contract will probably have force majeure applied to them.

Please endeavor to find commercially reasonable terms to work around this problem regardless of who's contract the deal was done under.

Regards,

Jon

-----Original Message-----

From: Brodeur, Stephane Sent: Sunday, July 01, 2001 9:50 AM To: Mckay, Jonathan; Lambie, Chris Subject: FW: Declaration of Force Majeure - WEI McMahon gas plant

-----Original Message-----

From: "Murray Bennett" <mbennett@wei.org>@ENRON
[mailto:IMCEANOTES+22Murray+20Bennett+22+20+3Cmbennett+40wei+2Eorg+3E+40ENRON@ENRON.com] Sent:
Saturday, June 30, 2001 2:23 PM To: Tackney, Conal; Enron/Jeff Haskey/IT; Prior, Liz; Enron/Rich Gebauer/IT; Brodeur,
Stephane Subject: Declaration of Force Majeure - WEI McMahon gas plant

NOTICE OF FORCE MAJEURE McMahon gas plant Westcoast Energy Inc. hereby gives notice pursuant to Section 19.03 of its General Terms and Conditions for Service of an occurrence of Force Majeure at Westcoast Energy's McMahon Gas plant on Saturday June 30, 2001. At approximately 0714 hours PST on Saturday June 30, 2001 WEI McMahon gas plant experienced a total loss of utility steam generation capability within the facility. This failure resulted in total loss of processing capacity at the facility. Westcoast Energy Inc. is currently working to return the facility to full operation. Shippers will be kept informed about the operational status of the event via the WEI Flow Phone (604-691-5555). For more information on the above Force Majeure, Shippers please contact the WEI customer service representative on call, Cynthia Scott. Cynthia can be reached at pager number 403.716.8748 or cellular 403.862.4836.

Murray Bennett WEI Field Services Outage Coordinator Cellular - (250) 262-6313 Dated at Ft. St. John, British Columbia, this 30th day of June, 2001

Murray Bennett WEI FS Outages and Reliability 250-262-3460 or 6313

Message 21 of 52

RE: Can Gas Phy Basis Firm West

Sender	jonathan.mckay@enron.com
Recipients	[chris.lambie@enron.com', 'melba.lozano@enron.com']
File	mckay-j/sent_items/67.

Empress can be traded in either, but for these purposed we would have it in USD/MMBtu.

Regards,

Jon

-----Original Message-----

From: Lozano, Melba Sent: Wednesday, August 15, 2001 1:49 PM To: Mckay, Jonathan Subject: RE: Can Gas Phy Basis Firm West

Is Empress traded in USD? Please let me know.

Thanks,

ML

-----Original Message-----

From: Mckay, Jonathan Sent: Wednesday, August 15, 2001 12:29 PM To: Lozano, Melba Cc: Lambie, Chris Subject: RE: Can Gas Phy Basis Firm West

Thanks for looking into this for me. Hopefully these answers help.

Is this the index for all products? Yes, we would like to have the ability to offer all western Canadian products under this formate. Under this structure we will be buying/selling natural gas in exchange for "the last scheduled Trading Day of the NYMEX Henry Hub Natural Gas Futures Contract" modified by the price submitted by the counterparty on the website. Which ones will be the locations you will be using? We will be putting out AECO, Sumas, Station 2, and Empress products under this format. Please match a Risk Book assignment to each location AECO/Empress - FT-Cand-EGSC and Sumas/Station 2 - FT-Cand-EGSC-BC Who will be the trader? Chris Lambie for AECO and Empress; Chris Dorland for Sumas/Station 2 Who will be the risk book administrator? Chelsea Bardel - (403) 974 6957 What will be the terms trading? We would like to have the ability to set up a bunch of products beyond 1 Month. To start with: Nov01,Dec01, Nov01-Mar02, Apr02-Oct02, Nov02-Mar03, Apr03-Oct03.

If you need a more through explanation please let me know.

Thanks,

Jon

-----Original Message-----

From: Lozano, Melba Sent: Wednesday, August 15, 2001 7:38 AM To: Lambie, Chris Cc: Mckay, Jonathan Subject: FW: Can Gas Phy Basis Firm West Importance: High

I need the following information so I can start building the product types.

Thank you. -----Original Message----- From: Lozano, Melba Sent: Tuesday, August 14, 2001 2:11 PM To: Lambie, Chris Subject: Can Gas Phy Basis Firm West Importance: High

Chris,

I have several questions on these new product types. Could you help me out so that I can send this for testing?

Is this the index for all products? The Index shall be the settlement price for the last scheduled Trading Day of the NYMEX Henry Hub Natural Gas Futures Contract. Which ones will be the locations you will be using? Please match a Risk Book assignment to each location Who will be the trader? Who will be the risk book administrator? What will be the terms

trading? (start and end dates)

Please let me know when you get all this information.

Thanks, Melba Lozano 713-345-8986 713-646-8511 Fax 713-698-4847 Pager

Message 22 of 52

RE: Canadian Gas slide and related talking points. See below. Let

Sender	jonathan.mckay@enron.com
Recipients	[david.leboe@enron.com]
File	mckay-j/sent_items/126.

David,

Thanks for sending this to me, it looks good. Does Mr. Frevert have the other points just in case further explanation is needed? I would not include them in his speaking points what you have is sufficient, but he probably needs the background just in case.

Let me know if I can do anything to help.

Regards,

Jon

-----Original Message-----

From: Leboe, David Sent: Monday, July 23, 2001 3:54 PM To: Mckay, Jonathan Subject: Canadian Gas slide and related talking points. See below. Let me know if you have any comments on Frevert's talking points. Thanks.

Here is the slide including Canada Gas Volumes -

<< OLE Object: Microsoft PowerPoint Slide >>

Here are the talking points -

North America Natural Gas Volumes - By Region

? Enron has a very strong, well-established, broad-based North American natural gas business. We deliver gas to over 2,000 customers at over 2,200 points across North America.

? Volumes in each major region increased in the first quarter: - In the West, volumes in the second quarter almost doubled to 3.9 Bcf/d. This increase has been in response to the unprecedented volatility and tight market for gas throughout much of the West. The West is our smallest region, comprising approximately 15% of our North America gas business. - In Canada, our volumes in the second quarter of 2001 decreased 23% over the second quarter of 2000 to 5.8 Bcf/d due to fact that during 2000 we offered a fixed price Alberta gas product through EOL that our customers used to hedge commodity price risk. With the Alliance Pipeline coming on-line in late 2000, our customers began making more extensive use of EOL's financial NYMEX-like products as an alternative. During 2001, Enron did not offer this product in an effort to focus on higher margin products. Our Canadian region continues its strong contribution to our total North America gas activities. - In our Central region, second quarter volumes increased 11% over a year ago to 7.2 Bcf/d. Our strong, broad-based presence in the region allowed us to grow our Central region business consistently over the last few years. In addition, our alliance with Peoples' Gas to develop the Chicago hub has brought increased liquidity to the region. - In the East, our volumes in the second quarter of 2001 increased 29% over the second quarter of 2000 to 9.0 Bcf/d. The East region is our largest region, comprising 35% of our North America Gas business. - Across all of our regions, EnronOnline contributed to the strong, overall increase in volumes during the quarter.

Background:

<< OLE Object: Microsoft Excel Worksheet >>

David T. Leboe Director, Investor Relations Enron Corp.

Office 713.853.4785 Cell 713.562.2160 Fax 713.646.3002 Pager 877.237.7732 david.leboe@enron.com

Message 23 of 52

Fw: Meteorolgy Employment Adds

Sender	bjenkins2@houston.rr.com
Recipients	['jonathan.mckay@enron.com', 'cardonmckay@shaw.ca']
File	mckay-j/ubswenergy_com/28.

TKCS-signature ----- Original Message ----- From: McKay, Don To: bjenkins2@houston.rr.com Cc: cardonmckay@shaw.ca Sent: Tuesday, February 05, 2002 5:58 PM Subject: FW: Meteorolgy Employment Adds

Hi: I hope this e-mail finds you both in good health and good spirits. Jon was seeking some information on possible sources for Meteorological employment. I spoke to Jim Renick who is the General Manager of our Alberta program and he has e-mailed this information. He also indicated the university of Texas A&M, was a possible locale to find some graduates, and or students, depending on what level of experience you were seeking. If you need anything else, let me know. Best regards Dad

[McKay, Don] Sent: Tuesday, February 05, 2002 9:44 AM To: McKay, Don Subject: Meteorolgy Employment Adds

Hi Don, Here are the webb site address for the American Meteorological Society (AMS) and the Canadian Meteorologica & Oceanographic Society (CMOS) pages. Both of these orgainizations posts job adds for meteorologists. The contacts will be in the webb sites.

www.ametsoc.org/AMS www.cmos.ca

There is an AMS conference on weather analysis and forecasting being held in San Antonio, TX in July if that offers any better prospects. The details will be on the AMS webb page.

Regards, Jim

..... Jim Renick, M.Sc. Technical/Meteorological Consultant
TECH-KNOWLEDGE Consulting Services 11 Warwick Drive Red Deer, AB, Canada T4N 6L4 Tel: 403-347-1545 Fax:
403-340-1340 Cell: 403-357-8377 email: renick@telusplanet.net

Message 24 of 52

Enron Transition Services

Sender	announcements.ubsw@enron.com
Recipients	[]
File	mckay-j/ubswenergy_com/29.

After close of business on February 8th and through December 31, 2002, UBS is required to provide certain 'Transition Services' as described in Article XI, section 11.3 of the comprehensive Licensing Agreement between Enron Corp and UBS AG. Enron will provide a written task list of certain services to be performed by UBSW Energy employees. UBS shall provide the information technology management services, financial advisory services and any other services mutually agreed to, with respect to trading and risk management for the existing Enron trading book. In order to ensure we are meeting these requirements, we will be asking Enron to funnel all requests through Eddy Daniels. Eddy Daniels will be responsible for allocating resources for each request in consultation with the Department Heads.

Effective immediately, all employees already contacted by the Estate are required to keep a time sheet of hours spent on services performed on behalf of Enron. The following information is required on the attached time sheet template:

Employee Name Pay Period (Month) Description of specific work activity performed by employee Time spent on project/service in 1/4 hour increments Out of pocket expenses incurred each day

The time sheets will be used for purposes of billing Enron back for services rendered per section 11.5 of the agreement. The following procedures are required for us to complete the billing and for purposes of maintaining the appropriate records needed for auditing purposes:

Submit completed time sheet to Anne Eastwood (ECS 05195) Attach original receipts to time sheet for expenses greater than \$25.

The time sheets should be completed and turned in the next business day after each pay period. If you have any questions, please contact Hope Vargas at ext. 35280 or Eddy at ext. 31440.

Thanks,

Louise

Message 25 of 52

AIMR Deferred Membership Application

Sender	membership@aimr.org
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/personal/90.

jonathan.mckay@enron.com July 24, 2001 Candidate #: 700351

FOLLOW-UP NOTICE

Dear Mr. McKay:

Thank you for your interest in the Association for Investment Management and Research (AIMR). On your Level III Enrollment /AIMR & Society / Chapter Membership Form you indicated that you wished to apply for AIMR membership after passing Level III. Now that the 2001 exam is over, AIMR invites you to take this opportunity to activate your membership application.

Although the results of the Level III exam are not currently available, we encourage you to complete your membership application today to avoid any delays in the eventual award of the CFA charter upon successful completion of Level III.

Please note that one of the requirements to be awarded the CFA charter is to fulfill AIMR membership requirements and apply concurrently for membership in AIMR and in an AIMR member society or chapter (if a society or chapter is located less than 50 miles (80 km) of a candidate's place of business). If you work more than 50 miles (80 km) from an AIMR member society or chapter, please notify us in writing if you would like to receive an exemption. The award of the CFA charter is contingent upon completion of all requirements.

To complete the processing of your membership application we need your society preference and appropriate sponsor forms. All application materials are valid for one year. Please review all sponsor requirements on AIMR's website at <http://www.aimr.org/memservices/join/requirements.asp>

All sponsor forms and related materials can be downloaded from AIMR's website at <http://www.aimr.org/memservices/join/apply.asp> or you may call to request these forms.

Please contact AIMR's Information Central department at tel: 800-247-8132 or 804-951-5499, fax: 804-951-5290, or e-mail: membership@aimr.org if you have any questions regarding the status of your membership request.

Sincerely,

Candidate & Member Services

Message 26 of 52

EES Trading in Canada

Sender	scott.campbell@enron.com
Recipients	['rob.milnthorp@enron.com', 'jesus.guerra@enron.com', 'ryan.watt@enron.com', 'joseph.des@enron.com', 'jonathan...']
File	mckay-j/retail/46.

Gentlemen, As most of you are aware, Enron's tax department has made recommendations in the past on how trading activities should be conducted to avoid duplicate taxation from Revenue Canada and the IRS. In a nutshell, the recommendations were:

A trader that is a resident of the United States should not trade on behalf of Canadian entities such as Enron Canada Corp. and Enron Energy Services Canada Co. Ltd.; A trader that is a resident of Canada should not trade on behalf of US entities such as ENA or EES; In March 2001 when Dave Pope was an EES Canada employee, the recommendation was that Dave confirm all arrangements Houston based EES traders made on behalf of EES Canada. The intent was that the Houston based trader would make the appropriate arrangements without committing EES Canada, then Dave would confirm the deal. As Dave is no longer with EES, I will take on that role with Rob Milnthorp as my backup.

As stipulated in all Enron contracts, a trade completed on a recorded telephone line is considered a binding agreement, therefore, I suggest that when Jesus (or his proxy) makes a trade on behalf of EES Canada, he should state in the telephone conversation that the trade will be confirmed by EES Canada personnel. Jesus, you can email me the details and I will confirm the trade - you should still fill out all paperwork. In the future near future, EES Canada will be self sufficient and Canadian based traders will take on Jesus' role.

I have spoken to John McKay about western Canada and will speak with Marin Cuilla about eastern Canada to make sure we are all on the same page. (Martin, could you reply to this email or call me at 403-974-6789 when you have a break from your trading?)

Mike and Ryan, please give me a shout if you have issues or concerns. Thanks.

T. Scott Campbell Enron Energy Services Canada Co. Ltd. 3500 Canterra Tower 400 - 3rd Avenue S.W. Calgary, AB T2P 4H2 ph 403-974-6789 fax 403-974-6991

Message 27 of 52

FW: Meteorology Employment Adds

Sender	jonathan.mckay@enron.com
Recipients	['cardonmckay@shaw.ca <mailto:cardonmckay@shaw.ca>', 's..shively@enron.com']
File	mckay-j/sent_items/295.

Hunter,

After talking with my father regarding new members for our weather team he sent me the email below. Sorry there isn't a better lead, however, I did notice that each of these websites have a place to post job opportunities. Should we be posting something? Just a thought.

Regards,

Jon -----Original Message----- From: beth jenkins [mailto:bjenkins2@houston.rr.com] Sent: Saturday, February 23, 2002 6:36 PM To: McKay, Jonathan Subject: Fw: Meteorolgy Employment Adds Importance: High

----- Original Message -----

From: McKay, Don <mailto:Don.McKay@AXA-Pacific.ca> To: bjenkins2@houston.rr.com <mailto:bjenkins2@houston.rr.com> Cc: cardonmckay@shaw.ca <mailto:cardonmckay@shaw.ca> Sent: Tuesday,

February 05, 2002 5:58 PM Subject: FW: Meteorolgy Employment Adds

Hi: I hope this e-mail finds you both in good health and good spirits. Jon was seeking some information on possible sources for Meteorological employment. I spoke to Jim Renick who is the General Manager of our Alberta program and he has e-mailed this information. He also indicated the university of Texas A&M, was a possible locale to find some graduates, and or students, depending on what level of experience you were seeking. If you need anything else, let me know. Best regards Dad

[McKay, Don] Sent: Tuesday, February 05, 2002 9:44 AM To: McKay, Don Subject: Meteorolgy Employment Adds

Hi Don, Here are the webb site address for the American Meteorological Society (AMS) and the Canadian Meteorologica & Oceanographic Society (CMOS) pages. Both of these orgainizations posts job adds for meteorologists. The contacts will be in the webb sites.

www.ametsoc.org/AMS <<http://www.ametsoc.org/AMS>> www.cmos.ca <<http://www.cmos.ca>>

There is an AMS conference on weather analysis and forecasting being held in San Antonio, TX in July if that offers any better prospects. The details will be on the AMS webb page.

Regards, Jim

..... Jim Renick, M.Sc. Technical/Meteorological Consultant
TECH-KNOWLOGY Consulting Services 11 Warwick Drive Red Deer, AB, Canada T4N 6L4
Tel: 403-347-1545 Fax: 403-340-1340 Cell: 403-357-8377 email: renick@telusplanet.net

Message 28 of 52

Jon McKay transfer - CPP/SS agreement

Sender	patricia.henry@enron.com
Recipients	[' kim.melodick@enron.com ', ' jonathan.mckay@enron.com ', ' janice.priddy@enron.com ']
File	mckay-j/personal/71.

I've just sent the application for Jon McKay's Canadian Pension Plan / U.S. Social Security agreement whereby he will pay us his CPP and not have any S.S. withheld while working in the U.S. His application is for the period August 22, 2001 to September 1, 2006 and will not be renewable after that date unless the 5-year limit is changed.

Normally the approval takes 4 weeks and I'll notify you (and send you a copy of the approval letter) so you can stop his S.S. deductions.

Many thanks,

Patricia Henry, CHRP Enron Canada Human Resources Tel: (403) 974-6936 Fax: (403) 974-6985
Patricia.Henry@enron.com

Message 29 of 52

RE:

Sender	jonathan.mckay@enron.com
Recipients	[' dale.onrait@rbcinvestments.com ']
File	mckay-j/sent_items/250.

Thank you very much for looking into this for me. I look forward to hearing from you

Regards,

Jon

-----Original Message-----

From: "Onrait, Dale" <dale.onrait@rbcinvestments.com>@ENRON Sent: Thursday, October 18, 2001 3:44 PM To: Mckay, Jonathan Subject: FW:

-----Original Message-----

From: Onrait, Dale Sent: Thursday, October 18, 2001 3:37 PM To: 'jonathan.mckay@enron.com' Subject: Hi Johnathan, It was great to speak with you the other day. I have a request to our transfer department to see if we can transfer your cash account to an affiliate in the US. I will let you know as soon as I hear from them. Dale Onrait, BSP MBA RBC Investments-Kelowna 1-800-756-2211 or (250) 712-2191

Message 30 of 52

Test run - July 1, 2001

Sender	stweet@deloitte.ca
Recipients	[jonathan.mckay@enron.com]
File	mckay-j/deleted_items/122.

Jon, I am wondering if you can have someone at your office send over the information for July near month so that we can complete a test run before we go live with the pie chart in August. This will also allow us to see what kind of percentages to expect, the kind of information we will get, etc. This will allow us to troubleshoot the process as well. If this is a problem please let me know at the number listed below. Also, within the next week or so I will let you know who to forward the information to on a monthly basis beginning on the last business day of July. Regards, Shyla M. Tweet, B. Comm. Staff Accountant II Deloitte & Touche LLP Calgary, AB Phone: (403) 267-1705 Fax: (403) 264-2871 E-mail: stweet@deloitte.ca

Message 31 of 52

Exchange rest of month for rate 11

Sender	randel.dalgleish@enron.com
Recipients	['coreen.herring@enron.com', 'ryan.watt@enron.com', 'webner.laura@enron.com', 'mckay.jonathan@enron.com', 'kat...']
File	mckay-j/retail/51.

John, as per your discussion with Kate here are the GJ's that we will sell to you each day from June 7 to June 30 as part of the balancing of Enron Directs rate 11 accounts with ATCO. As I understand this will be sold at AECO daily index with no fees attached and will be exchanged with ECC rather than transfer from our account.

The following is the GJ's that need to be exchanged (sold):

Daily Vol # of Days Total Account 480 Rate 11 ACTO North 29 24 696 Account 481 Rate 11 ACTO South 22 24 528 Total 51 24 1,224

Can I get a confirmation that deal was executed.

If there are any questions please give me a call.

I'll call Coreen to discuss how to change the nomination with Mel.

Thanks

Randel Dalgleish (403) 663-2807 (403) 663-2899 Fax

Message 32 of 52

CFA	
Sender	jonathan.mckay@enron.com
Recipients	['raffaele@banksterling.com']
File	mckay-j/sent_items/191.

Dear Mr. Raffaele,

My name is Jon McKay and I just moved from Calgary, Canada to Houston. Just prior to moving I passed the Level III C.F.A. exam and now find my self in need of a sponsor to join the Houston society. I was wondering if you could put me in contact with some of the local charter holders so that I could obtain sponsor ship and join the Houston society. I was not member of the society in Calgary, as I was waiting to pass the third examination before joining, but I could provide some contacts in Calgary that hold charters, who would a test to my character. If you had a local membership list, or even just a list of Enron employee who have C.F.A. Charters that I could contact, it would be greatly appreciated.

If you can help please contact me at (w) 713 853-4810, (h) 713 225-1230 or, at jonathan.mckay@enron.com.

Thank you,

Jon McKay

Message 33 of 52

Mid-Year 2001 Performance Feedback	
Sender	perfmgmt@enron.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/perfmgmt/7.

MCKAY, JONATHAN,

The PEP system closes on Friday, May 25, 2001

Our records indicate that you have been requested to provide feedback on one or more Enron employees. The deadline for completing feedback is Friday, May 25th.

Below is a list of feedback requests with a status of "OPEN". Please complete or decline these requests as soon as possible by logging into PEP at <http://pep.enron.com> and selecting Complete Feedback from the Main Menu.

If you have any questions, please contact the PEP Help Desk at: Houston: 713-853-4777, Option 4 or email: perfmgmt@enron.com London: 44 207 783 4040, Option 4 or email: pep.enquiries@enron.com

Thank you for your participation in this important process.

Employee Name: BRUCE, CHAD GILLIS, BRIAN HEDSTROM, PEGGY LE DAIN, ERIC MCISAAC, LISA REEVES, M. KATHY RONDEAU, CLAYTON SEIB, DIANNE TORRES, CARLOS ZUFFERLI, JOHN

Message 34 of 52

FW:	
Sender	jonathan.mckay@enron.com
Recipients	['bjenkins2@houston.rr.com']
File	mckay-j/sent_items/8.

-----Original Message-----

From: "Onrait, Dale" <dale.onrait@rbc.com>@ENRON Sent: Monday, December 31, 2001 10:48 AM To: Mckay, Jonathan Subject:

Hi Jonathan, Our compliance department has just contacted us back regarding your request to hold a small cash account here to pay your RSP fees each year. Their suggestion is that we sell the Janus mutual funds and convert this money to US funds then transfer it to your Dane Rascher account in the US because you are now a US resident and the Investment regulations want it handled that way. You could simply send us a cheque for the RSP fees when we notify you each June. I hope you had a good holiday season, did you get home for Christmas? Let me know by phone if we can proceed as suggested above and I will look after it for you in the new year. Thanks. Dale Onrait, BSP MBA RBC Investments-Kelowna 1-800-756-2211 or (250) 712-2191

Message 35 of 52

FW: Indicative Pricing

Sender	jonathan.mckay@enron.com
Recipients	['nicole.laporte@enron.com', 'ryan.watt@enron.com']
File	mckay-j/sent_items/161.

Ryan could you make contact with Jesus and be his contact for pricing.

Could you set up a process (maybe the bidfax) where by he can get daily pricing info.

Thanks,

Jon -----Original Message----- From: Campbell, Scott Sent: Friday, June 22, 2001 1:58 PM To: Mckay, Jonathan Cc: Guerra, Jesus Subject: Indicative Pricing

John, Would it be possible for you to assign one person that is easily accessible to provide Jesus with indicative pricing for Empress throughout the month? Possibly Ryan Watt? Maybe you could include Jesus on an email distribution list (if there is such a thing) to provide him with indicatives. We have one customer in particular that likes kicking tires, and Jesus doesn't like bothering you guys all the time for him.

T. Scott Campbell Enron Energy Services Canada Co. Ltd. 3500 Canterra Tower 400 - 3rd Avenue S.W. Calgary, AB T2P 4H2 ph 403-974-6789 fax 403-974-6991

Message 36 of 52

RE: Haul-all Buy

Sender	jonathan.mckay@enron.com
Recipients	['greg.mann@enron.com']
File	mckay-j/sent_items/77.

Don't worry with the 11GJ's just as long as we have the proper volumes over here. Also, leap years are observed in the gas business. When working out the number of days on excel, if you take the month in advance and subtract the current month it will give the correct number of days (including leap years).

Regards,

Jon

-----Original Message-----

From: Mann, Greg Sent: Tuesday, August 14, 2001 6:57 AM To: Mckay, Jonathan Subject: Haul-all Buy

Jon, Thanks for everything. There was a small error in the buy sheet for haul - all yesterday. I have attached a correct one. the problem was the final buy numbers did not divide by the days in the month evenly. the total is out 11 GJs. Just let me know what to do. sorry! Also, for February on a long term contract covering a leap year, do we need to incorporate a different formula to buy for that leap month with 29 days. Greg Mann Sales Manager (403) 663-2817 fax: (403) 663-2899 greg.mann@enron.com <mailto:greg.mann@enron.com>

Message 37 of 52

FW: Information Required for Monthly Pie Chart Assembly

Sender	jonathan.mckay@enron.com
Recipients	['ian.cooke@enron.com']
File	mckay-j/sent_items/127.

Please take care of this. Didn't we already send her the data for July?

Jon -----Original Message----- From: "Tweet, Shyla (CA - Calgary)" <stweet@deloitte.ca>@ENRON [mailto:IMCEANOTE S-+22Tweet+2C+20Shyla+20+28CA+20-+20Calgary+29+22+20+3Cstweet+40deloitte+2Eca+3E+40ENRON@ENRON.com] Sent: Monday, July 23, 2001 2:47 PM To: Mckay, Jonathan Subject: Information Required for Monthly Pie Chart Assembly

Jon, I still have not received the information from Enron to complete the test run for July. Please forward this information to me as soon as possible. Please also send a copy to Shayroz Gaidhar as she will be the person assembling the information on a monthly basis. Her e-mail address is sgaidhar@deloitte.ca . Please contact me immediately if there will be a problem getting this information to me within the next two days. Regards, Shyla M. Tweet, B. Comm. Staff Accountant II Deloitte & Touche LLP Calgary, AB Phone: (403) 267-1705 Fax: (403) 264-2871 E-mail: stweet@deloitte.ca

Message 38 of 52

RE: Pricing

Sender	jonathan.mckay@enron.com
Recipients	['greg.frers@enron.com']
File	mckay-j/sent_items/134.

Telus Lindsay Park Hillsboro

1 Year 4.445 4.445 4.41

2 Year 4.545 4.545 4.50

3 Year 4.555 4.55 4.51

Good Luck.....GO STAMPS GO

Jon

-----Original Message-----

From: Frers, Greg Sent: Thursday, July 19, 2001 6:22 AM To: Mckay, Jonathan Subject: Pricing

Good morning Jon,

I need some firm pricing for the Telus Convention Centre, Lindsay Park and for Hillsboro Enterprises. one -Two - three year contracts. Hillsboro and Telus out of Oct. 1 and Lindsay out of Aug 1 - one year contract. Telus should close today(if all goes well) If you don't get back to me before 8:15AM could you email the prices to Mark Dickin. I'm off to Edmonton for a game leaving at 9:00AM. Thanks Jon.

Greg

Gregory Frers Enron Direct Sales Manager Suite 950, Encor Place 645 - 7th. Avenue SW Calgary, Alberta T2P 4G8 Ph. : 403-663-2805 Fax : 403-663-2899 Greg.Frers@enron.com <mailto:Greg.Frers@enron.com>

Message 39 of 52

NGX Datafeed

Sender	dan.zastawny@ngx.com
Recipients	['jonathan.mckay@enron.com', 'jay.webb@enron.com']
File	mckay-j/deleted_items/119.

Hello Jay,

I was wondering if you could tell me if there is a specific time each day that the datafile that we access is taken offline. We had a little glitch last Friday when we tried to do our "end-of-day" poll at 5:00 and couldn't access the file. We were able to get a copy of the file from Enron locally in Calgary and it solved our problem. Alternatively, however, we would like to adapt the code so it doesn't try to poll late in the day (if the file won't be available late in the day). Could you tell me if there are specific times when the file won't be available each day?

Thanks Jay. Otherwise, the feed is working really well. We've hammered out most of the implemenation bugs and it seems to be pretty smooth now.

Dan R. Zastawny Manager, Business Development Natural Gas Exchange Inc. Suite 2330, 140 4th Avenue S.W. Calgary, Alberta, Canada T2P 3N3 Phone: 403.974.4335 Fax: 403.974.1719 Visit NGX at <http://www.ngx.com/>

Every right implies a responsibility; every opportunity, an obligation - John D. Rockefeller, Jr., 1941

Message 40 of 52

FW: Status of Agreement for Order# 773190

Sender	jonathan.mckay@enron.com
Recipients	['mark.powell@enron.com']
File	mckay-j/sent_items/145.

Mark,

Do you remember this agreement? I think I told you to pass it along to the new lawyer when he came and I was wondering if this was done, and if I should follow up with him?

They certainly are persistent in getting us to sign this.

Please direct me as to what I should be doing

Regards,

Jon

PS. When you comin' back?

-----Original Message-----

From: "SEAN KELLY, BLOOMBERG/ INTERN" <SKELLY9@bloomberg.net>@ENRON [mailto:IMCEANOTES+22SEAN+20KELLY+2C+20BLOOMBERG_+20INTERN+22+20+3CSKELLY9+40bloomberg+2Enet+3E+40ENRON@ENRON.com]
] Sent: Thursday, July 05, 2001 12:17 PM To: Mckay, Jonathan Subject: Status of Agreement for Order# 773190

Hello Mr. McKay Please advise on the status of the Powermatch agreement for the above order number, and the estimated return date so I can update the order accordingly. Please let me know if you have any questions. Be sure to reference your order number on any return correspondence.

Regards, Sean Kelly Bloomberg Contracts (ph) 212-318-3540 (fx) 917-369-5540

Message 41 of 52

Access to UBSWenergy Production Environment

Sender	stephanie.sever@enron.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/inbox/5.

IMPORTANT - THE IDS BELOW WILL BE YOUR PERMANENT ACCESS TO PRODUCTION

Your PRODUCTION User ID and Password has been set up on UBSWenergy. Please follow the steps below to access the new environment:

From Internet Explorer connect to the UBSWenergy Production Cluster through the following link:

<http://remoteservices.netco.enron.com/ica/ubswenergy.ica> (use your UBSWenergy/Enron NT Log In & Password)

From the second Start menu, select appropriate application:

STACK MANAGER User ID: jmckay Password: q#9M#npX (Please Change)

Below is a special internal use only link for the simulation purposes only to get to the trading area of the website. DO NOT PROVIDE THIS LINK TO ANYONE NOT PART OF THE SIMULATION. (customers should be directed to go to the direct link www.ubsenergy.com).

http://www.ubswenergy.com/site_index.html (FOR SIMULATION ONLY)

WEBSITE - Book (PB-EAST 3) User ID: MUS84447 Password: WELCOME! PLEASE DO NOT TRANSACT BEFORE SIMULATION TOMORROW!

Should you have any questions or issues, please contact me at x33465 or the Call Center at 713-584-4444

Thank you,

Stephanie Sever 713-853-3465

Message 42 of 52

FW: NGX/Enron Report requirement

Sender	ian.cooke@enron.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/deleted_items/116.

Jon,

What would you like me to do about this?

Thanks, Ian

-----Original Message-----

From: "Tweet, Shyla (CA - Calgary)" <stweet@deloitte.ca <mailto:stweet@deloitte.ca>>@ENRON [mailto:IMCEANOTES-+22Tweet+2C+20Shyla+20+28CA+20-+20Calgary+29+22+20+3Cstweet+40deloitte+2Eca+3E+40ENRON@ENRON.co

m] Sent: Tuesday, July 17, 2001 12:51 PM To: Cooke, Ian Subject: NGX/Enron Report requirement

Ian, I have not been able to get ahold of Jon McKay and have heard through the grapevine that he has gone to Houston with Enron. Therefore, I am contacting you to try to get some information necessary for the assembly of the month end pie chart. I am wondering if Jonathan has designated responsibility for getting the information to us on the last business day of every month. Also, I would like to get the July near month information to do a test run. If possible please forward me this information or let me know who to contact to get the necessary information. Thanks, Shyla M. Tweet, B. Comm. Staff Accountant II Deloitte & Touche LLP Calgary, AB Phone: (403) 267-1705 Fax: (403) 264-2871 E-mail: stweet@deloitte.ca <mailto:stweet@deloitte.ca>

Message 43 of 52

RE:	
Sender	jonathan.mckay@enron.com
Recipients	['dale.onrait@rbcinvestments.com']
File	mckay-j/sent_items/263.

Dale,

Thanks for the email. I would be happy to pay the 50.00 fee one last time, however, given that this account will not be touched and no changes in the accounts holdings are allowed under Canadian tax law given my status, we need to find a way to either avoid this fee in the future or transfer the holdings to somewhere else. I would much appreciate your recommendation on how to proceed as well as an address as to where I should send the money for the outstanding balance.

Regards,

Jon

-----Original Message-----

From: "Onrait, Dale" <dale.onrait@rbcinvestments.com>@ENRON Sent: Thursday, November 22, 2001 11:25 AM To: Mckay, Jonathan Subject:

Hi Jonathan, A couple of questions for you: 1) Have you proceeded with opening an account at Dane Rauscher yet? 2) Your RSP account has a small debit of \$50.00, probably due to RSP holding fees charged to the account for 2001. We either need a cheque from you for the \$50.00 or we need to sell \$50.00 worth of something to generate the \$50.00 in the account. Just drop me a note or call regarding how you would like to proceed. Thanks.

Dale Onrait, BSP MBA RBC Investments-Kelowna 1-800-756-2211 or (250) 712-2191

Message 44 of 52

RE: Data Files	
Sender	jonathan.mckay@enron.com
Recipients	['njamal@deloitte.ca']
File	mckay-j/sent_items/151.

Yes, all trades have and associated contract that outlines the "performance obligations" and this is similar to NGX's. Still waiting to talk to a lawyer on the other issues. I will get it to you today.

Jon

-----Original Message-----

From: "Jamal, Nazam (CA - Calgary)" <njamal@deloitte.ca>@ENRON [mailto:IMCEANOTES-+22Jamal+2C+20Nazam+20+28CA+20-+20Calgary+29+22+20+3Cnjamal+40deloitte+2Eca+3E+40ENRON@ENRON.com] Sent: Thursday, June 28, 2001 12:31 PM To: Wiebe, Chris; Mckay, Jonathan Subject: Data Files

Hi Guys, Thanks for the Data files you sent, if I have any other questions, I will contact you guys today sometime this afternoon. Jonathan, Graham and myself were talking to NGX and they said that they almost always have contracts that have "Firm Performance Obligations" and that are non-interruptible. Is that the same for Enron as well? And I just wanted to confirm that I will be receiving the policies and procedures for how trades-in-error and breakdowns in communication are dealt with, sometime this afternoon. Thankyou, NAZAM JAMAL Consultant Enterprise Risk Services Deloitte & Touche LLP (Direct: (403) 503-1387 .Fax: (403) 263-2390 *E-mail: njamal@deloitte.ca

Message 45 of 52

nan	
Sender	dale.onrait@rbcinvestments.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/inbox/24.

Hi Jonathan, Here is the address to send the cheque: RBC Dominion Securities #1100-1708 Dolphin Avenue Kelowna, BC V1Y 9S4 Just so you know our firm charges a administration/trustee fee for Registered accounts each year as do all full service brokerage firms (Nesbitt/Wood Gundy etc). It is for the work involved in reporting the accounts to Revenue Canada. For accounts holding only bonds, mutual funds and trust units the fee is \$45 dollars plus taxes. For accounts such as yours holding the above plus stock positions the fee is \$125 dollars plus taxes each year. We can rebalance your account to take positions in only mutual funds and trust units but you are not allowed to add any money to the account to buy new positions. Only Credit Unions and Banks provide fee free RSP accounts and those usually do not include stock positions. I guess it is your decision on how you would like to proceed with this account. If you want to check other firms to see if they would hold the RSP account for no fee you can certainly do that but if you decide to stay with RBC Dominion Securities they will charge you each year. Sorry for the bad news. Of course if your account goes up even 5% per year you would have a gain of \$2500 dollars and a \$125 dollar fee would be a small part of that gain. We could sell \$600 dollars worth of something in the account to generate cash for the fees for 4 years if you would like, That would get you some time to see if you remain in the US. Let me know how you would like to proceed. Dale Onrait, BSP MBA RBC Investments-Kelowna 1-800-756-2211 or (250) 712-2191

Message 46 of 52

RE: New info	
Sender	jonathan.mckay@enron.com
Recipients	['gmiller@rci.rogers.com']
File	mckay-j/sent_items/24.

Glen,

YOUR ALIVE.....!!!!!! Glad to see you are still around. What's with the new job? For me the new job is obvious. We started playing a drinking game where every time the name Enron was mentioned you had to do a shot. Minutes later I was fired for drunken insubordination. Sometime in the next 3-4 weeks I'll start working for UBS Warburg (Union Bank of Switzerland). I'm hoping working for a Swiss company may finally get me out of the middle of all the conflicts (Terrorism, Enron, Anthrax). No one should want to harm the Canadian working for the Swiss company.

Actually, my division was sold to UBS so the transition should not be that hard. Mostly the same people, but on a much smaller scale. If I could make the same amount of money for UBS I did for Enron last year, I'd finally get the Bonus I've

always been looking for. Anyways, I'll keep you posted. My Email hasn't changed yet, but I'm sure it will. If you need to get in contact with me try, Bjenkins2@houston.rr.com

How's the personal life going? I hope all is well.

Jon

-----Original Message-----

From: Glen Miller <gmiller@RCI.ROGERS.COM>@ENRON Sent: Friday, January 18, 2002 2:48 PM To: Mckay, Jonathan Subject: New info Importance: Low

Hey Jonny, sorry I missed you over New Years....I went out to TO on the 28th for a week....life's been kind of shitty lately so I probably wouldn't have been much fun anyway...hope you had a good xmas and new year....how're things down there and with Enron?

As you can see, I have a new email address and phone number...

Glen Miller Facilities Coordinator - Alberta/Midwest Rogers Shared Services

Ph: (403) 730-3174 Fax: (403) 730-2997 email: gmiller@rci.rogers.com

Message 47 of 52

RE: Pricing

Sender	chad.bruce@enron.com
Recipients	['albert.luc@enron.com', 'jonathan.mckay@enron.com', 'kate.joslyn@enron.com']
File	mckay-j/retail/31.

The deal has been booked into Tagg. I have entered the ED - ECC leg, it is VS3986. I believe Albert will be entering the counterparty leg.

Chad

-----Original Message-----

From: Joslyn, Kate Sent: Friday, July 27, 2001 4:16 PM To: Mckay, Jonathan Cc: Bruce, Chad; Luc, Albert Subject: RE: Pricing

Jon Lindsay Park have closed. Please book the deal. Thanks Kate

-----Original Message-----

From: Mckay, Jonathan Sent: Friday, July 27, 2001 7:18 AM To: Joslyn, Kate Subject: FW: Pricing

Kate,

Greg asked me to get a price for Lindsay Park first thing in the morning. Given their load profile we would be offered at 4.39/gj for supply one year out of August. Please let me know if you need any thing else.

Best Regards,

Jon -----Original Message----- From: Frers, Greg Sent: Thursday, July 26, 2001 4:16 PM To: Mckay, Jonathan Subject: RE: Pricing

Jon,

I'm not going to be in tomorrow and Kate Joslyn is going to close the Lindsay Park deal for me. Could you Email pricing to her directly instead of to me. Thanks Jon.

Hey, if you ever need some tickets to go to a game let me know.

Greg

-----Original Message-----

From: McKay, Jonathan Sent: Thursday, July 26, 2001 2:45 PM To: Frers, Greg Subject: RE: Pricing

We would be offered at 4.43 right now, but like all things.... what goes up must come down. We moved down .16 in the front part of the curve, but the back has not followed as quickly. I would expect we will have a good hedging opportunity the next couple of days, and then rally after that.

Regards,

Jon

-----Original Message-----

From: Frers, Greg Sent: Thursday, July 26, 2001 1:33 PM To: McKay, Jonathan Subject: Pricing

Jon,

Lindsay Park is being a pain in the butt - could you update me on price. I know we are up today - when do you think prices may get back down to 4.25 range again?

Start Date - August 1

Thanks

Gregory Frers Enron Direct Sales Manager Suite 950, Encor Place 645 - 7th. Avenue SW Calgary, Alberta T2P 4G8 Ph. : 403-663-2805 Fax : 403-663-2899 Greg.Frers@enron.com <mailto:Greg.Frers@enron.com>

Message 48 of 52

FW: Pricing

Sender	mark.dickin@enron.com
Recipients	['darren.cross@enron.com', 'randel.dalgleish@enron.com', 'albert.luc@enron.com', 'jonathan.mckay@enron.com', '...]
File	mckay-j/retail/32.

All,

As discussed with Jon McKay this AM, please book the following deal. Albert, there is a change in price on the EDC-ECC ticket. Please send us back the ticket numbers.

Thanks, Mark.

-----Original Message-----

From: Joslyn, Kate Sent: Monday, July 30, 2001 7:47 AM To: Dickin, Mark Subject: FW: Pricing

-----Original Message-----

From: Joslyn, Kate Sent: Friday, July 27, 2001 4:16 PM To: McKay, Jonathan Cc: Bruce, Chad; Luc, Albert Subject: RE: Pricing Jon Lindsay Park have closed. Please book the deal. Thanks Kate

-----Original Message-----

From: McKay, Jonathan Sent: Friday, July 27, 2001 7:18 AM To: Joslyn, Kate Subject: FW: Pricing Kate,

Greg asked me to get a price for Lindsay Park first thing in the morning. Given their load profile we would be offered at 4.39/gj for supply one year out of August. Please let me know if you need any thing else.

Best Regards,

Jon -----Original Message----- From: Frers, Greg Sent: Thursday, July 26, 2001 4:16 PM To: McKay, Jonathan Subject: RE: Pricing Jon,

I'm not going to be in tomorrow and Kate Joslyn is going to close the Lindsay Park deal for me. Could you Email pricing to her directly instead of to me. Thanks Jon.

Hey, if you ever need some tickets to go to a game let me know.

Greg -----Original Message----- From: Mckay, Jonathan Sent: Thursday, July 26, 2001 2:45 PM To: Frers, Greg Subject: RE: Pricing We would be offered at 4.43 right now, but like all things.... what goes up must come down. We moved down .16 in the front part of the curve, but the back has not followed as quickly. I would expect we will have a good hedging opportunity the next couple of days, and then rally after that.

Regards,

Jon -----Original Message----- From: Frers, Greg Sent: Thursday, July 26, 2001 1:33 PM To: Mckay, Jonathan Subject: Pricing Jon,

Lindsay Park is being a pain in the butt - could you update me on price. I know we are up today - when do you think prices may get back down to 4.25 range again?

Start Date - August 1

Thanks

Gregory Frers Enron Direct Sales Manager Suite 950, Encor Place 645 - 7th. Avenue SW Calgary, Alberta T2P 4G8 Ph. : 403-663-2805 Fax : 403-663-2899 Greg.Frers@enron.com <mailto:Greg.Frers@enron.com>

Message 49 of 52

FW: Critical,OTHER,20010119,COLUMBIA GULF,007854581,Gas Quality

Sender	victor.lamadrid@enron.com
Recipients	['lia.halstead@enron.com', 'robin.barbe@enron.com', 'robert.allwein@enron.com', 'chuck.ames@enron.com', 'donna...]
File	mckay-j/pipeline_info/9.

-----Original Message-----

From: navigator@nisource.com [mailto:navigator@nisource.com] Sent: Wednesday, January 23, 2002 9:44 AM To: navigator@nisource.com Subject: Critical,OTHER,20010119,COLUMBIA GULF,007854581,Gas Quality Specifications - REMINDER

COLUMBIA GULF TRANSMISSION COMPANY NOTICE TO ALL INTERESTED PARTIES JANUARY 23, 2002

Re: Gas Quality Specifications - REMINDER Notice ID: 2435 5 - NO RESPONSE REQUIRED

REMINDER - The notice posted below is still in effect at least until the end of February 2002.

COLUMBIA GULF TRANSMISSION COMPANY NOTICE TO ALL INTERESTED PARTIES JANUARY 19, 2001

SUBJECT: NOTICE TO PARTIES DELIVERING OR CAUSING GAS TO BE DELIVERED TO COLUMBIA GULF TRANSMISSION COMPANY

Pursuant to Section 25.2(a) of Columbia's tariff, Columbia is providing notice of the imposition of the following additional gas quality specification on all shippers, interconnecting pipelines, producers, and receipt meter operators, and all other parties delivering or causing gas to be delivered into Columbia's system:

All gas tendered under Columbia's tariff shall have a gross heating value of no more than 1050 Btu per cubic foot.

This additional gas quality specification will be imposed two (2) business days after this notice is posted on Columbia's internet electronic bulletin board.

In addition to complying with this additional gas quality specification, all parties delivering or causing gas to be delivered into the Columbia-operated Blue Water system on the Western Shoreline, the Southwestern Extension, or on the Header (west of the system null point) may be required to provide evidence to Columbia that such gas is being processed at the Blue Water Processing Plant to ensure that the composite gas stream at Egan, Louisiana has a gross heating value of 1050 Btu or less. Evidence of the gas processing agreements may be required upon Columbia's request.

Failure of a party to comply with the additional gas quality specification set forth above and to provide Columbia Gulf with evidence, upon request, of a gas processing agreement for gas delivered to the Blue Water system will result in Columbia Gulf refusing to accept gas from such party and to make corresponding redeliveries.

Imposition of this additional gas quality specification does not relieve any party delivering gas or causing gas to be delivered to Columbia's system from its existing obligations to comply with the gas quality specifications set forth in Section 25.1 of Columbia's tariff, to ensure the merchantability of the gas, and to ensure that gas has been properly processed before entering Columbia's system.

Columbia, pursuant to the terms of Section 25.2(a) of its tariff, is imposing this additional gas quality specification as it has determined, in its reasonable judgment, that harm to its pipeline system and its operations may occur if it receives gas on its system that fails to meet this additional gas quality specification. Columbia reserves the right to revise this additional gas quality specification upon further analysis of the gas that is being received by Columbia and reevaluation of the potential harm to Columbia's pipeline system and its operations.

You are further placed on notice that Columbia will hold you responsible and seek legal redress for any damages it incurs as a result of the higher Btu gas.

Any questions about this notice may be directed to Gary Espey, (713) 267-4761, or to John Pillion, (713) 267-4764.

Message 50 of 52

AIMR Memorial Scholarship Fund

Sender	aimr2001@bbh1.viamedialinq.com
Recipients	['jonathan.mckay@enron.com']
File	mckay-j/deleted_items/67.

Dear Friend,

In the days and weeks that have passed since 11 September, we have heard from AIMR members and CFA candidates around the world. They have expressed shock. They have expressed anger. And they have expressed sadness for those who died, at least 56 of whom were fellow AIMR members and CFA candidates.

Above all else, however, the members and candidates with whom we have spoken have expressed an eagerness to become active participants in the world's recovery from these tragic events. In response to their desires, and in honor of the many thousands of people who died or who were permanently injured in the attacks, the AIMR Board of Governors has established:

The AIMR 11 September Memorial Scholarship Fund (to contribute online go to <http://www.aimr.org/featuring/research/11septscholarship/index.html>).

The fund will provide scholarships to those victimized by the terrorist attacks of 11 September 2001--casualties and their spouses, domestic partners, and dependents. Scholarship recipients will have stated a desire to pursue an undergraduate degree in finance, economics, or a related field.

A distinguishing feature of this fund is that scholarship recipients will come from nations all over the world.

While terrorists attacked humanity on 11 September, their choice of the World Trade Center was not coincidental. It was a clear attempt to undermine free and open capital markets everywhere in the world. This scholarship fund is therefore intended not only to benefit the casualties and their surviving loved ones, but ultimately the global investment community

itself by encouraging a new generation of bright minds to explore the opportunities available in the fields of finance and economics.

AIMR has established the fund with an initial grant of US\$1,000,000 of its own. We will rely on members, CFA candidates, and others from the global investment community to provide additional contributions. The scholarship program will be managed through the Research Foundation of AIMR, a 501(c) 3 charitable organization under U.S. tax law.

Certainly there is no shortage of charitable causes related to the 11 September attacks to which you can contribute. As you consider whether to make a contribution to the AIMR Memorial Scholarship Fund, you should know that one hundred percent of collected funds will be re-distributed to scholarship recipients. In other words, AIMR will not use any of the contributions to offset the administration of the fund.

You will be receiving this same solicitation by mail in the next week or two. You also can make a contribution via the AIMR Web site at <http://www.aimr.org/featuring/research/11septscholarship/index.html>. For tax advantages, some may prefer to contribute securities rather than cash. Whatever way you choose to give, your contribution is likely to be tax deductible.*

Day by day, the world and the investment community are recovering from the events of 11 September and getting on with our lives. We believe the best way AIMR and the Research Foundation can honor the victims of the attacks is through a collective act of kindness such as what has been described above. We hope you or your firm will join AIMR in making a generous contribution to the AIMR 11 September Memorial Scholarship Fund.

Sincerely,

Philippe A. Sarasin, CFA AIMR Chair

Thomas A. Bowman, CFA AIMR President & CEO

Fred H. Speece, Jr., CFA Chair of the Research Foundation

P.S. If you choose to make a contribution by check, please make it payable to the AIMR 11 September Memorial Scholarship Fund. If you wish to make a contribution by phone, please call 1-800-247-8132 or 434-951-5499.

*Consult your tax advisor to verify that your contribution to the Research Foundation is indeed tax deductible.

Message 51 of 52

FW: ENA-ECC Force Majeure

Sender	jonathan.mckay@enron.com
Recipients	['martin.cuilla@enron.com']
File	mckay-j/sent_items/130.

Martin

How is it going? I don't want to make this a big deal, (quite frankly you = and me have better things to spend our time on, and the dollar amount relating to these cuts is trivial) but with respect to cuts in the future I think it is important that we teach the people underneath us the correct way to handle these issues, so that in the future we do not have to be involved. = Below is a quick dialog that Greg Johnston and I have had with respect to = the cuts and what we can and can not do.

This seems to be blown way out of proportion by Kevin Heal and if there is = anything I can do to make this GO AWAY please let me know.

Thanks,

Jon=20

-----Original Message-----

From: =09Johnston, Greg =20 Sent:=09Friday, July 20, 2001 8:37 AM To:=09Mckay, Jonathan Subject:=09RE: ENA-ECC Force Majeure

No. If they declare FM against us, the operative wording in the agreement = is "to the extent that they are affected by such event". In other words, t= hey can only cut a deal to the extent the force majeure prevents them from = performing.

-----Original Message-----

From: =09Mckay, Jonathan =20 Sent:=09Friday, July 20, 2001 9:29 AM To:=09Johnston, Greg Subject:=09RE: ENA-ECC Force Majeure

Greg,

Do they have any right to cut a deal by more than the amount that the pipel= ine declared as its force majeure volume?

Jon McKay Unemployed phone: 403-974-6733 jonathan.mckay@enron.com

-----Original Message-----

From: =09Johnston, Greg =20 Sent:=09Friday, July 20, 2001 8:11 AM To:=09Heal, Kevin Cc:=09Mckay, Jonathan Subject:=09ENA-ECC Force Majeure

Kevin, further to your voice-mail, as indicated to you yesterday, our physi= cal gas master agreement with ENA is in their form of Enfolio master agreem= ent and not our form of master. What that means is that, although the mech= anics of declaring force majeure, etc. are the same, the definition of forc= e majeure under our Enfolio master with ENA is not restricted to delivery p= oint force majeure as it is in ECC's standard form, but is rather a broader= based force majeure. However, it must be kept in mind that, depending on = the transaction, the definition of "force majeure" may be amended in the te= rms of the particular confirmation letter. The application section (which = is basically the same as in our form) is as follows:

This Article 5 is the sole and exclusive excuse of performance permitted un= der this Agreement, and all other excuses at law or in equity are waived to= the extent permitted by law. Except with regard to payment obligations, i= n the event either Party is rendered unable, wholly or in part, by Force Ma= jeure to carry out its obligations hereunder, it is agreed that upon such P= arty's giving notice and full particulars of such Force Majeure to the othe= r Party as soon as reasonably possible (such notice to be confirmed in writ= ing), the obligations of the Party giving such notice, to the extent that t= hey are affected by such event, shall be suspended from the inception and d= uring the continuance of the Force Majeure for a period of up to 60 Days in= the aggregate during any 12 Month period, but for no longer period. The P= arty receiving notice of Force Majeure may immediately take such action as = it deems necessary at its expense for the entire 60 Day period or any part = thereof. The Parties expressly agree that upon the expiration of the 60 Da= y period Force Majeure shall no longer apply to the obligations hereunder a= nd both Buyer and Seller shall be obligated to perform...

I will send a copy of the agreement over to you which also contains the def= inition of Force Majeure, but again it must be remembered that such definit= ion may be amended in the particular confirm.

Greg Johnston Senior Counsel Enron Canada Corp. phone: 403-974-6745 greg.johnston@enron.com

Message 52 of 52

Force Majeure Protocol

Sender	kevin.heal@enron.com
Recipients	['greg.johnston@enron.com', 'jonathan.mckay@enron.com', 'robert.superty@enron.com', 'peggy.hedstrom@enron.com']...
File	mckay-j/deleted_items/143.

An event of Force Majeure occurred on Northern Border (NBPL) on July 13 at = Station 8 resulting in curtailment of deliveries through Ventura from July1= 3-18. As a result, ENA was not able to take full delivery of firm volumes = from EC at the Monchy upstream interconnect.

EC and ENA hold divergent views on how to implement the curtailment. We need to reach a common understanding.

The view of EC is that a force majeure event, as defined by Article 5 of our master agreement with ENA (see Attachment) or superceded by amendments contained in individual confirmation letters, implies that all firm transactions must be curtailed "by the same percentage that the applicable transporter interrupts or curtails firm delivery service..." (language in parentheses was directly lifted from a Monchy confirmation letter dated November 1, 1997 signed by Julie Gomez).

The view of ENA, as articulated by Martin and Lisa, is that Northern Border sends scheduled volumes back to Unify via EDI with a service agreement attached to a firm supply deal. The pipeline scheduled volume for the path drives how much each individual deal is curtailed even if some supply deals are cut by a different percentage than others. My apologies if I have not expressed this properly.

In other words, we agree on the magnitude of the curtailment but not how to allocate cuts to individual deals.

Because we have desk to desk deals (since earlier this year), ENA and EC must agree on scheduled volumes. In the past our deals were Physical Forward and if our volumes did not agree it was not discovered until invoicing, at which time the accountants would duke it out. Now, Logistics quite properly has to deal with it within the month. This has implications at all points where ENA transacts with EC such as Kingsgate, Empress, Eastern Canada.

EC has reluctantly agreed to accept ENA's non-proportional scheduled volumes for this event so that the schedulers can move on but I would appreciate a policy resolution to this issue prior to the next downstream curtailment.

Kevin Heal Enron Canada Corp. 403 974-6727

Attachment

Legal Opinion dated July 20, 2001

Kevin, further to your voice-mail, as indicated to you yesterday, our physical gas master agreement with ENA is in their form of Enfolio master agreement and not our form of master. What that means is that, although the mechanics of declaring force majeure, etc. are the same, the definition of force majeure under our Enfolio master with ENA is not restricted to delivery point force majeure as it is in ECC's standard form, but is rather a broader based force majeure. However, it must be kept in mind that, depending on the transaction, the definition of "force majeure" may be amended in the terms of the particular confirmation letter. The application section (which is basically the same as in our form) is as follows:

This Article 5 is the sole and exclusive excuse of performance permitted under this Agreement, and all other excuses at law or in equity are waived to the extent permitted by law. Except with regard to payment obligations, in the event either Party is rendered unable, wholly or in part, by Force Majeure to carry out its obligations hereunder, it is agreed that upon such Party's giving notice and full particulars of such Force Majeure to the other Party as soon as reasonably possible (such notice to be confirmed in writing), the obligations of the Party giving such notice, to the extent that they are affected by such event, shall be suspended from the inception and during the continuance of the Force Majeure for a period of up to 60 Days in the aggregate during any 12 Month period, but for no longer period. The Party receiving notice of Force Majeure may immediately take such action as it deems necessary at its expense for the entire 60 Day period or any part thereof. The Parties expressly agree that upon the expiration of the 60 Day period Force Majeure shall no longer apply to the obligations hereunder and both Buyer and Seller shall be obligated to perform...

I will send a copy of the agreement over to you which also contains the definition of Force Majeure, but again it must be remembered that such definition may be amended in the particular confirm.

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